

Defendant's Motion for Summary Judgment is **GRANTED** as to Issues 1-4. As Issue 5 was argued in the alternative, this result affords complete relief in Defendant's favor on both the First Amended Complaint and the Cross Complaint. A proposed order has been lodged and will be executed.

AKBARI VS. WESTERN TRUCK CENTER, ET AL.

CASE NUMBER: 23CV-0202398

Tentative Ruling on Motion for Terminating Sanctions: Defendant Western Truck Center moves for an order of terminating sanctions, or in the alternative evidentiary sanctions. Plaintiff also requests sanctions to be imposed jointly and severally against Plaintiff and Counsel in the amount of \$13,450. Plaintiff opposes the motion.

Merits: Misuses of the discovery process include disobeying a court order to provide discovery. CCP § 2023.010(g). The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a). Issue, evidence, and terminating sanctions may be imposed. CCP § 2023.030(b), (c), and (d); 2025.450(h).

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. "Discovery sanctions 'should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

In this action, the Court has previously issued three separate Orders on Defendant's motions for Plaintiff's repeated misuse of the discovery process. The Court imposed sanctions totaling \$9,600. Plaintiff concedes that he has not complied with any of the three Orders and has not paid any of the sanctions. Further, Plaintiff concedes to spoliation of evidence, by selling the truck which is the subject of this dispute, despite executing a stipulation to preserve it. No explanation is provided other than that the Plaintiff could not afford to keep the truck. The Court finds that the violations here are willful, preceded by a history of abuse, and that lesser sanctions would not produce compliance. The totality of circumstances here weigh in favor of terminating sanctions. However, Defendant has also filed a Motion for Summary Judgment, which is set for hearing today. In a separately issued tentative ruling, the Court intends to grant Summary Judgment in favor of Defendant/Cross-Complainant on all causes of action in the First Amended Complaint and the Cross-Complaint. This result moots the request for terminating sanctions.

Sanctions: The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a).

Here, the Court has previously imposed sanctions of \$9,600.00, which have not been paid. Defendant requests an additional \$13,450.00 in attorney fees for bringing this motion. This is based on rates of \$690 per hour, and \$545 per hour. No breakdown of hours spent has been provided, so the Court cannot determine whether the time spent was reasonable. Using the lower hourly rate, this would amount to over 24 hours on the preparation of this motion.

The Court finds the hourly rate and hours requested unreasonable. A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. *See PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. A party seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243. There is no evidence supporting an award of hourly rates higher than local rates. Based on the Court's knowledge and experience, it finds \$400 per hour to be reasonable in this matter. The Court will also reduce the hours requested to 8, since no itemized breakdown was provided. Sanctions will be imposed in the amount of \$3,200.

The Motion for Terminating Sanctions is **GRANTED** in part. The requests for terminating or evidentiary sanctions is made moot by the granting of Defendant's Motion for Summary Judgment. The request for an order of sanctions jointly and severally against Plaintiff and Counsel is granted, in the amount of \$3,200. Defendant's proposed order will be modified.

BLEAKLEY VS. AIRBNB, INC, ET AL.

CASE NUMBER: 26CV-0210657

Tentative Ruling on Motion for Order Nunc Pro Tunc to Set Filing Date: Plaintiff Michelle Bleakly moves for an Order *nunc pro tunc* setting (or amending) the filing date for the Complaint in this action as May 11, 2026 to correct a clerical error. The Court is inclined to grant the Motion on the merits, if the representations Counsel makes in the Motion are adequately supported by evidence. The Declaration of Sako Demirjian, filed concurrently with the Motion, does not establish any of the facts alleged in the Motion. Moreover, Exhibits A and B are missing from the filing. The Court will continue hearing on this Motion to permit Plaintiff to file a supplemental declaration that adequately supports the Motion. Today's hearing is continued to **Monday, September 28, 2026 at 8:30 a.m. in Department 64.** Any supplemental declaration must be filed no later than September 22, 2026.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

Tentative Ruling on Demurrer: Defendant City of Redding and the Redding Police Department demur to each cause of action in the Second Amended Complaint on the grounds that the claims are barred by failure to comply with the Government Claims Act, statutory immunity, for failure to state a claim, and for being vague and ambiguous. The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Tracy Werner establishes compliance with the meet and